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## A Liberal Dilemma

(<https://web.archive.org/web/20231121085304/https://groundviews.org/2010/04/20/a-liberal-dilemma/>)

DEVANESAN NESIAH ([HTTPS://WEB.ARCHIVE.ORG/WEB/20231121085304/HTTPS://GROUNDVIEWS.ORG/AUTHOR/DR-NESIAH/](https://web.archive.org/web/20231121085304/https://groundviews.org/author/dr-nesia/))

on 04/20/2010



‘Liberty, Equality, Fraternity’ was the lead slogan of the French Revolution which has been an inspiration to many movements around the globe.Â Many political initiatives have claimed to be based on Liberty and/or Equality. Several national constitutions and UN and other international agreements have upheld both Liberty and Equality as their guiding principles. The question arises: are Liberty and Equality fully compatible or is there a fundamental and inescapable contradiction between the ideals?

Both the US and Indian Constitutions draw inspiration from the French Revolution and the concepts of Liberty and Equality, but with widely different emphasis. The Francophile Thomas Jefferson was pre-eminent among the US Founding Fathers. They were all white, upper class, Protestant Christian and slave-owning males. The Liberty and Equality they advocated was for that class.Â They were committed to a free enterprise and capitalist society based on 18<sup>th</sup> century Liberalism and in which the role of the state was minimal. For them, universal adult suffrage was inconceivable, a non-issue, and race and class and gender disparities were given. Jefferson did raise the question of the abolition of slavery but dropped it in the face of overwhelming opposition. He remained a slave owner, albeit a kindly one. It was the Declaration of Independence (1776) drafted and released at the same time by the same Founding Fathers as the US Constitution that contained Jeffersonian flights of Liberal rhetoric such as:

“We hold these truths to be self-evident: that all men are created equal; that they are endowed by their creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness; that to secure these rights governments are instituted among men, deriving their just power from the consent of the governed”

It is pertinent, that unlike the Constitution, the Declaration of Independence lacks the force of law. Â Nine decades later the concept of Liberty and Equality had, under the leadership of Abraham Lincoln, progressed beyond slavery and racial subjugation. The new understanding of Liberty and Equality is reflected in his Gettysburg Address of 1863 and manifest in the 13<sup>th</sup> Amendment of 1865 forbidding slavery, the Civil Rights Act of 1867 that extended citizenship to “all persons in the United States” and the 14<sup>th</sup> Amendment of 1868 which incorporates the Equal Protection and Due Process clauses. But even in the Gettysburg Address the affirmation that all men are equal was not meant to contradict existing class and gender inequalities. Moreover, the racial equality achieved was de jure not de facto, and even that de jure equality was in federal law. Â Many state laws continued to prescribe racial discrimination and segregation. Gender discrimination remained widespread both de jure and de facto at all levels. Women gained voting rights only in 1920. It was the series of landmark Supreme Court rulings beginning in 1954, the Civil Rights Act of 1964 and the Voting Rights Act of 1965 that eventually outlawed segregation, racial discrimination and effectively extended voting rights to Blacks throughout the USA.Â This was nearly two centuries after the proclamation of Liberty and Equality in the Declaration of Independence.

It is also interesting to note that the Civil Rights Act of 1964 and the Voting Rights Act of 1965 are not integral to the US Constitution, which remains true to the traditional concepts of liberalism. The dramatic developments of the Civil Rights decades of the 50’s and 60’s in which the concept of Equality gained pre-eminence has been seen as an aberration, a short lived deviation from the US tradition. As set out by Professor Jack Pole (at a seminar in 1985, at the Kennedy School of Government, Harvard University):

“Historically the ideal of Liberty has been pursued with more energy and persistence, and has been a more active force in American life and American ideals than Equality. On the whole, looking through more than two hundred years of American history, I feel that the remarkable thing is not so much that there has been a persistent obsession with Equality but rather the relative rarity of the periods when it became the central issue—there have been very few periods in American history when the problem of equality seemed to be the issue on which politics converged.”

The Indian Constitution enacted on the 29<sup>th</sup> of November 1949 proclaimed Liberty and Equality within its text but in its Directive Principles, which like the US Declaration of Independence, has no force of law. But the emphasis was not on Equality; any Occidental inspiration was Fabian Socialist rather than Liberal. As Sir Ivor Jennings had observed, the ghost of Sydney and Beatrice Webb stalk the pages of the Directive Principles of the Indian Constitution. But unlike the US and or Occidental Constitutions, that of India contains elaborate provisions for a wide range of group rights “a concept alien to the Liberal ideology on which the US and other Occidental Constitutions are based. Galanter (1984) and Austin (1966) have lauded the Indian Constitution for drawing from diverse traditions and effectively yoking competing equalities, viz. individual equality and group equality. The chapter on the Directive Principles included Articles 37 and 46 of the Indian Constitution that read:

Article 37 “The provisions contained in this Part shall not be enforceable by any court, but the principles therein laid down are nevertheless fundamental in the governance of the country and it shall be the duty of the state to apply these principles in making laws.”

Article 46 “The state shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from social injustice and all forms of exploitation.”

There are many other sections of the Constitution, which expressly prescribe quotas for Scheduled Castes and Scheduled Tribes, and Other Backward Classes, including quotas for election to legislative bodies at all levels. Laws are now being enacted prescribing quotas for women too. All this is contradictory to traditional Liberalism. Clearly, the emphasis in the Indian Constitution is less on Liberty and much more on Equality, including Group Rights, a concept autochthonous to the Indian tradition.

That there could be an inherent contradiction between Liberty and Equality appears to be conceded by Lord Acton, a distinguished Liberal cited by Chanaka Amaratunga, when he stated that “the finest opportunity given to the world was thrown away when the passion for equality made vain the hope for freedom.” Does the “freedom” of the Liberal require resisting “the passion of equality”? Clearly most freedoms do not in any way conflict with the concept of equality. Abiding by the Constitution, the rule of law, good governance, transparency in administration, zero tolerance of extra judicial violence, especially on journalists and human rights activists, will in fact help to promote equality. It will be fraudulent to claim otherwise. The problems relate to Group Rights and to the role of the state in relation to the economy. It is on these issues that there could be conflict between traditional Liberalism and the imperatives of Equality.

On Group Rights, some of the distinguishing features of the Indian Constitution underline the problem. Group Rights could relate to a multitude of oppressed categories of Caste, Religion, Tribe, Ethnicity, Region, Class, etc and the remedies too could be diverse “Quotas and Preferences, Land Reform, economic redistribution through taxation and welfare policies, etc. Regarding the role of the state in the economy the ideological gap appears to be narrowing. The old style socialist states are no more, and the leading laissez faire states are now much more accommodating to the role of the state. All national economies are mixed and becoming more so.

Whatever reservations we may have regarding the primacy of Individual Rights as against Group Rights, any system that takes away individual freedom is unacceptable. It is the capacity and willingness to make individual choices that are thoughtful and varied, creative and original that distinguishes human from non-human life. This point is admirably expressed in the passage below cited by Chanaka Amaratunga from John Stuart Mill. If this is the core definition of Liberalism, surely we are all Liberals;

“The human faculties of perception, judgment, discriminative feeling, and mental activity, and even moral preference are exercises only in making a choice. He who does anything because it is the custom makes no choice. He gains no practice either in discerning or desiring what is best. The faculties are not called into existence by doing a thing merely because others do it anymore than in believing a thing because others believe in it.”

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The 19<sup>th</sup> of April marks the 52<sup>nd</sup> birthday of **Dr. Chanaka Amaratunga**.

*Groundviews* invited leading political commentators to contribute to a special edition commemorating Chanaka's role in politics and the liberal movement in Sri Lanka.

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The 19th of April was the 52nd birthday of Dr. Chanaka Amaratunga

([https://web.archive.org/web/20231121085304/https://en.wikipedia.org/wiki/Chanaka\\_Amaratunga](https://web.archive.org/web/20231121085304/https://en.wikipedia.org/wiki/Chanaka_Amaratunga)), the founder of the Liberal Party of Sri Lanka. Groundviews invited leading political commentators to contribute to a special edition commemorating Chanaka's role in politics and the liberal movement in Sri Lanka.

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